

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3367

By: Williams

AS INTRODUCED

An Act relating to compound prescriptions; amending 63 O.S. 2021, Section 2-309, as last amended by Section 6, Chapter 308, O.S.L. 2024 (63 O.S. Supp. 2025, Section 2-309), which relates to electronic prescriptions; mandating that certain circumstances use electronic prescriptions; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 2-309, as last amended by Section 6, Chapter 308, O.S.L. 2024 (63 O.S. Supp. 2025, Section 2-309), is amended to read as follows:

Section 2-309. A. 1. Except for dosages medically required for a period not to exceed forty-eight (48) hours which are administered by or on direction of a practitioner, other than a pharmacist, or medication dispensed directly by a practitioner, other than a pharmacist, to an ultimate user, no controlled dangerous substance included in Schedule II, which is a prescription drug as determined under regulation promulgated by the Board of Pharmacy, shall be dispensed without an electronic prescription of a

1 practitioner; provided, that in emergency situations, as prescribed
2 by the Board of Pharmacy by regulation, such drug may be dispensed
3 upon oral prescription reduced promptly to writing and filed by the
4 pharmacist in a manner to be prescribed by rules and regulations of
5 the Director of the Oklahoma State Bureau of Narcotics and Dangerous
6 Drugs Control.

7 2. Electronic prescribing shall be utilized for Schedules II,
8 III, IV and V, subject to the requirements set forth in 21 CFR,
9 Section 1311 et seq.

10 3. An electronic prescription with electronic signature may
11 serve as an original prescription, subject to the requirements set
12 forth in 21 CFR, Section 1311 et seq.

13 4. Prescriptions shall be retained in conformity with the
14 requirements of this section and Section 2-307 of this title. No
15 prescription for a Schedule II substance may be refilled.

16 5. The electronic prescription requirement provided for in this
17 section shall not apply to prescriptions for controlled dangerous
18 substances issued by any of the following:

- 19 a. a person licensed to practice veterinary medicine,
- 20 b. a practitioner who experiences temporary technological
21 or electrical failure or other extenuating
22 circumstance that prevents the prescription from being
23 transmitted electronically; provided, however, that
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- 1 the practitioner documents the reason for this
2 exception in the medical record of the patient,
- 3 c. a practitioner, other than a pharmacist, who dispenses
4 directly to an ultimate user,
- 5 d. a practitioner who orders a controlled dangerous
6 substance to be administered through an on-site
7 pharmacy in:
- 8 (1) a hospital as defined in Section 1-701 of this
9 title,
- 10 (2) a nursing facility as defined in Section 1-1902
11 of this title,
- 12 (3) a hospice inpatient facility as defined in
13 Section 1-860.2 of this title,
- 14 (4) an outpatient dialysis facility,
- 15 (5) a continuum of care facility as defined in
16 Section 1-890.2 of this title, or
- 17 (6) a penal institution listed in Section 509 of
18 Title 57 of the Oklahoma Statutes,
- 19 e. a practitioner who orders a controlled dangerous
20 substance to be administered through a hospice program
21 including but not limited to a hospice program that
22 provides hospice services in the private residence of
23 a patient or in a long-term care facility where the
24 patient resides. As used in this subparagraph,

1 "hospice program" has the same meaning as provided by
2 Section 1-860.2 of this title,

- 3 f. a practitioner who writes a prescription to be
4 dispensed by a pharmacy located on federal property,
5 provided the practitioner documents the reason for
6 this exception in the medical record of the patient,
- 7 g. a practitioner that has received a waiver or extension
8 from his or her licensing board,
- 9 h. a practitioner who prescribes a controlled dangerous
10 substance for a supply that when taken as prescribed
11 would be consumed within seventy-two (72) hours, or
- 12 i. a practitioner who determines that an electronic
13 prescription cannot be issued in a timely manner and
14 the condition of the patient is at risk.

15 6. Electronic prescriptions ~~may~~ shall be utilized under the
16 following circumstances:

- 17 a. compounded prescriptions,
- 18 b. compounded infusion prescriptions, or
- 19 c. prescriptions issued under approved research
20 protocols.

21 7. A pharmacist who receives a written, oral or facsimile
22 prescription shall not be required to verify that the prescription
23 falls under one of the exceptions provided for in paragraph 6 of
24 this subsection. Pharmacists may continue to dispense medications

1 from otherwise valid written, oral or facsimile prescriptions that
2 are consistent with the provisions of this section.

3 8. Practitioners shall indicate in the health record of a
4 patient that an exception to the electronic prescription requirement
5 was utilized.

6 9. All prescriptions issued pursuant to paragraph 5 and
7 subparagraph c of paragraph 6 of this subsection shall be on an
8 official prescription form approved by the Oklahoma State Bureau of
9 Narcotics and Dangerous Drugs Control if not issued electronically.

10 10. a. Practitioners shall be registered with the Oklahoma
11 State Bureau of Narcotics and Dangerous Drugs Control
12 in order to purchase official prescription forms.
13 Such registration shall include, but not be limited
14 to, the primary address and the address of each place
15 of business to be imprinted on official prescription
16 forms. Any change to a registered practitioner's
17 registered address shall be promptly reported to the
18 practitioner's licensing board and the Bureau by the
19 practitioner in a manner approved by the Bureau.

20 b. Where the Bureau has revoked the registration of a
21 registered practitioner, the Bureau may revoke or
22 cancel any official prescription forms in the
23 possession of the registered practitioner. Any
24 revocation or any suspension shall require the

1 registered practitioner to return all unused official
2 prescription forms to the Bureau within fifteen (15)
3 calendar days after the date of the written
4 notification.

5 c. A practitioner that has had any license to practice
6 terminated, revoked or suspended by a state or federal
7 agency may, upon restoration of such license or
8 certificate, register with the Bureau.

9 11. a. Official prescription forms shall be purchased at the
10 expense of the practitioner or the employer of the
11 practitioner from a list of vendors approved by the
12 Bureau.

13 b. Official prescription forms issued to a registered
14 practitioner shall be imprinted with the primary
15 address and may include other addresses listed on the
16 registration of the practitioner to identify the place
17 of origin. Such prescriptions shall be sent only to
18 the primary address of the registered practitioner.

19 c. Official prescription forms of a registered
20 practitioner shall be used only by the practitioner
21 designated on the official prescription form.

22 d. The Bureau may revoke or cancel official prescription
23 forms in possession of registered practitioners when
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1 the license of such practitioner is suspended,
2 terminated or revoked.

3 e. Official prescription forms of registered
4 practitioners who are deceased or who no longer
5 prescribe shall be returned to the Bureau at a
6 designated address. If the registered practitioner is
7 deceased, it is the responsibility of the registered
8 practitioner's estate or lawful designee to return
9 such forms.

10 f. The Bureau may issue official prescription forms to
11 employees or agents of the Bureau and other government
12 agencies for the purpose of preventing, identifying,
13 investigating and prosecuting unacceptable or illegal
14 practices by providers and other persons and assisting
15 in the recovery of overpayments under any program
16 operated by the state or paid for with state funds.
17 Such prescription forms shall be issued for this
18 purpose only to individuals who are authorized to
19 conduct investigations on behalf of the Bureau or
20 other government agencies as part of their official
21 duties. Individuals and agencies receiving such
22 prescription forms for this purpose shall provide
23 appropriate assurances to the Bureau that adequate
24 safeguards and security measures are in place to

1 prevent the use of such prescription forms for
2 anything other than official government purposes.

3 12. a. Adequate safeguards and security measures shall be
4 undertaken by registered practitioners holding
5 official prescription forms to assure against the
6 loss, destruction, theft or unauthorized use of the
7 forms. Registered practitioners shall maintain a
8 sufficient but not excessive supply of such forms in
9 reserve.

10 b. Registered practitioners shall immediately notify the
11 Bureau, in a manner designated by the Bureau, upon
12 their knowledge of the loss, destruction, theft or
13 unauthorized use of any official prescription forms
14 issued to them, as well as the failure to receive
15 official prescription forms within a reasonable time
16 after ordering them from the Bureau.

17 c. Registered practitioners shall immediately notify the
18 Bureau upon their knowledge of any diversion or
19 suspected diversion of drugs pursuant to the loss,
20 theft or unauthorized use of prescriptions.

21 B. 1. Except for dosages medically required for a period not
22 to exceed seventy-two (72) hours which are administered by or on
23 direction of a practitioner other than a pharmacist or medication
24 dispensed directly by a practitioner, other than a pharmacist, to an

1 ultimate user, or the circumstances provided for in paragraphs 5 and
2 6 of subsection A of this section, no controlled dangerous substance
3 included in Schedule III or IV, which is a prescription drug as
4 determined under regulation promulgated by the Board of Pharmacy,
5 shall be dispensed without an electronic prescription.

6 2. Any prescription for a controlled dangerous substance in
7 Schedule III, IV or V may not be filled or refilled more than six
8 (6) months after the date thereof or be refilled more than five
9 times after the date of the prescription, unless renewed by the
10 practitioner.

11 C. Whenever it appears to the Director of the Oklahoma State
12 Bureau of Narcotics and Dangerous Drugs Control that a drug not
13 considered to be a prescription drug under existing state law or
14 regulation of the Board of Pharmacy should be so considered because
15 of its abuse potential, the Director shall so advise the Board of
16 Pharmacy and furnish to the Board all available data relevant
17 thereto.

18 D. 1. "Prescription", as used in this section, means a
19 written, oral or electronic order by a practitioner to a pharmacist
20 for a controlled dangerous substance for a particular patient, which
21 specifies the date of its issue, and the full name and address of
22 the patient and, if the controlled dangerous substance is prescribed
23 for an animal, the species of the animal, the name and quantity of
24 the controlled dangerous substance prescribed, the directions for

1 use, the name and address of the owner of the animal and, if
2 written, the signature of the practitioner. When electronically
3 prescribed, the full name of the patient may include the name and
4 species of the animal.

5 2. "Registered practitioner", as used in this section, means a
6 licensed practitioner duly registered with the Oklahoma State Bureau
7 of Narcotics and Dangerous Drugs Control authorized to purchase
8 official prescription forms.

9 E. No person shall solicit, dispense, receive or deliver any
10 controlled dangerous substance through the mail, unless the ultimate
11 user is personally known to the practitioner and circumstances
12 clearly indicate such method of delivery is in the best interest of
13 the health and welfare of the ultimate user.

14 SECTION 2. This act shall become effective November 1, 2026.

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